

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS
STATE OF COLORADO

Case No. 2016-1735

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF TAYLOR
GOLDBERG, LICENSE NO. LPC 5416.

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional
Counselor Examiners ("Board") and Taylor Goldberg ("Respondent"), as follows:

1. Respondent was licensed to practice as a professional counselor ("LPC") in the State of
Colorado on October 5, 2009, having been issued license number LPC 5416, and is currently so
licensed with conditions.

2. The Board has jurisdiction over Respondent and the subject matter of this Stipulation
and Final Agency Order ("Order").

3. It is the intent of the parties and the purpose of this Order to provide for a settlement of
all matters arising out of the complaint in case number 2016-1735 without the necessity of
holding a formal hearing. This Order is a full and final resolution of case number 2016-1735.
This Order does not resolve any other cases, complaints, or matters, known or unknown to the
Board or Respondent, as of the effective date of this Order.

4. Respondent admits the following:

- a. Respondent failed to comply with her Continuing Professional Development
("CPD") requirements during the 2011-2013 renewal cycle.
- b. On June 30, 2016, Respondent executed and is currently under a Stipulation and
Final Agency Order with the Board in this case ("2016 Order") for failing to
complete her CPD hours. She was required to complete forty (40) hours of CPD
within twelve (12) months of the effective date of the 2016 Order.
- c. Respondent failed to complete any CPD hours, violating the 2016 Order.
- d. This Order supersedes and replaces the 2016 Order.

5. By virtue of the admissions in paragraph 4 above, Respondent admits and the Board finds that Respondent violated §12-43-222(1)(b), C.R.S., and Board Rule 18, which state:

§ 12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article violates this article if the person:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article or rule promulgated pursuant to this article or any order of a board established pursuant to this article.

Rule 18 -- Continuing Professional Competence. Effective January 1, 2011, licensed professional counselors shall demonstrate continuing professional competence through participation and compliance with the Continuing Professional Development program in order to renew, reinstate or reactivate a license to practice professional counseling in the State of Colorado.

RELINQUISHMENT

6. Respondent hereby relinquishes her license and the right to practice as a professional counselor in the State of Colorado, commencing from the effective date of this Order, and requests that the Board accept said relinquishment. Such relinquishment shall have the same force and effect as a revocation ordered by the Board, including the provisions of §12-43-224(3)(a)(II), C.R.S.

7. Following relinquishment of her LPC license, Respondent shall not perform any act requiring a license to practice.

8. Respondent understands that if she applies for licensure at any future time, Respondent will be required to comply with all criteria for initial licensure that exist at the time of application.

9. Respondent also agrees not to register as a psychotherapist in the State of Colorado or perform any act constituting psychotherapy as defined under §12-43-201(9), C.R.S.

TERMS AND CONDITIONS

10. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §§12-43-212 and 24-4-104(9), C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

11. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

12. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

13. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to §§12-43-212, 12-43-224, and 24-4-104(9), C.R.S.

14. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

15. Respondent shall obey all state and federal laws while this Order is in effect.

16. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

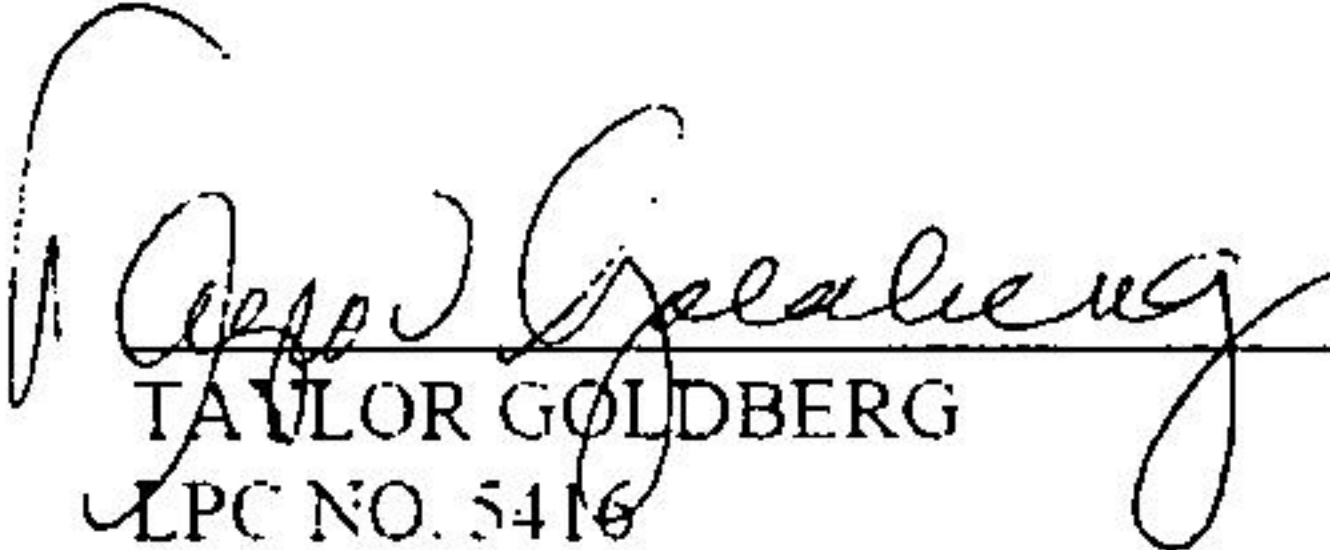
17. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

18. This Order shall be admissible as evidence at any hearing held before the Board.

19. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

RESPONDENT


TAYLOR GOLDBERG
LPC NO. 5416

AGREED TO AND ORDERED BY:

**STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR
EXAMINERS**


DARCIE MAGNUSON
Program Director

Effective this 26th day of October, 2017.